

Annex I.

DECISION CONCERNING THE JOINDER OF THE TWO
SUITS INTRODUCED SUCCESSIVELY BY THE GERMAN
GOVERNMENT.

Before :

MM. HUBER, <i>President</i> ,	
LODER, <i>Former President</i> ,	
WEISS, <i>Vice-President</i> ,	
Lord FINLAY,	} <i>Judges</i> ,
MM. NYHOLM,	
ALTAMIRA,	
ANZILOTTI,	
YOVANOVITCH,	} <i>Deputy-Judges</i> ,
BEICHMANN,	
NEGULESCO,	
Count ROSTWOROWSKI,	} <i>National Judges</i> .
M. RABEL,	

Case concerning certain German interests in Polish Upper Silesia.

The Government of Germany, represented by Dr. Erich Kaufmann, Professor at Bonn,

*Applicant,**versus*

The Government of the Polish Republic, represented by M. Mrozowski, President of the Supreme Court of Warsaw, and M. Sobolewski, Assistant Delegate to the Reparation Commission,

Respondent.

Joinder of two suits introduced successively by the German Government.

Whereas by an Application instituting proceedings filed with the Registry of the Court on May 15th, 1925, in accordance with Article 40 of the Statute, the German Government, in its conclusion No. 3, requested the Court, *inter alia*, to give judgment that :

"The liquidation by the Polish Government of the rural estates belonging to Count Nikolaus Ballestrem ; to the *Georg Giesche's Erben Company* ; to Christian Kraft, Fürst zu Hohenlohe-Oehringen ; to the *Vereinigte Königs- und Laura-hütte Company* ; to the Baroness Maria Anna von Goldschmidt-Rothschild (née von Friedländer-Fuld) ; to Karl Maximilian, Fürst von Lichnowsky ; to the City of Ratibor ; to Frau Gabriele von Ruffer (née Gräfin Henckel von Donnersmarck) ; to the *Godulla Company* and to Frau Hedwig Voigt, would not be in conformity with the provisions of Article 6 and the following articles of the Geneva Convention" ;

Whereas in its Judgment delivered on August 25th, 1925, the Court declared the Application to be admissible and reserved it for judgment on the merits ;

Whereas in a second Application filed with the Registry on August 25th, 1925, in accordance with Article 40 of the Statute, the German Government requested the Court to give judgment that :

"The liquidation of the rural estates belonging to the Duke of Ratibor and Count Saurma-Jeltsch would not be in conformity with the provisions of Article 6 and the following articles of the Geneva Convention" ;

Whereas in its Application dated August 25th, 1925, the German Government further asked that the Court may be pleased to join the said Application to the Application filed on May 15th, 1925 ;

Whereas in a letter dated September 11th, 1925, the Minister of the Polish Republic at The Hague informed the Registrar of the Court that the Polish Government, to whom the Application of August 25th, 1925, had been duly communicated in accordance with Article 40 of the Statute, agreed that the said Application should be joined to the Application filed on May 15th, 1925 ;

THE COURT,

composed as stated above,

Having regard to Article 48 of the Statute ;

Having regard to Article 61, paragraph 1, of the Rules of Court,

Duly records the agreement reached between the Parties in regard to the joinder of the proceedings instituted by the German Government against the Polish Government on May 15th and August 25th, 1925 ; and

For the purpose of proceedings on the merits, joins the causes of action mentioned in the Application of August 25th, 1925, to those mentioned in Conclusion No. 3 of the Application of May 15th, 1925.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this fifth day of February, one thousand nine hundred and twenty-six, in three copies, one of which is to be placed in the archives of the Court, and the others to be forwarded to the Agents of the Applicant and Respondent Parties respectively.

(Signed) MAX HUBER,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

Annex II.

ORDER OF COURT DATED MARCH 22nd, 1926.

TENTH SESSION (EXTRAORDINARY).

Before:

MM. HUBER, *President*,
LODER, *Former President*,
WEISS, *Vice-President*,

Lord FINLAY,
MM. NYHOLM,
ALTAMIRA,
ANZILOTTI, } *Judges*,

YOVANOVITCH,
BEICHMANN,
NEGULESCO, } *Deputy-Judges*,

Count ROSTWOROWSKI,
M. RABEL, } *National Judges*.

Case concerning certain German interests in Polish Upper Silesia.

THE COURT,

composed as above,
after deliberation,
makes the following order :

The Court

(1) invites the Parties to furnish, at a public hearing, by whatever means they may think fit, further information regarding the points